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REDUCTION OF GHG EMISSIONS FROM SHIPS

The complementary role of regulations and guidelines and the need for core requirements of the GHG agreement to be in regulations

Submitted by CLIA and WSC

SUMMARY

Executive summary:	This document examines the critical and complementary role that regulations and guidelines play in the forthcoming GHG instrument. The document also highlights the need to clearly distinguish what are binding regulatory requirements from what the Committee develops as supporting guidelines that provide recommendations concerning more detailed procedures, technical considerations, and other matters important for the implementation of the regulations.
Strategic direction, if applicable:	3
Output:	3.2
Action to be taken:	Paragraph 14
Related documents:	Resolution A.911(22) and MSC-MEPC.1/Circ.5/Rev.5

Introduction

1 The Organization is currently engaged in the negotiation of a global GHG agreement that is expected to result in profound changes in the GHG emissions emitted by the world's fleet. The agreement is also expected to shape investments and obligations across the world's commercial maritime sector for at least the next 20 years. Given the importance and magnitude of the forthcoming agreement, the co-sponsors believe it is critical that core elements of the agreement are articulated in regulations that are unambiguous and serve consistent implementation across the globe.

The role of regulations and supporting guidelines

2 Proposals made to ISWG-GHG 17 and MEPC 82 envision the development of 16 or more guidelines supporting the mid-term GHG reduction measures to be adopted in 2025. IMO guidelines provide an important resource and source of guidance that are designed to assist Member States and the regulated industry in the implementation of numerous IMO legal agreements that include MARPOL, the BWM Convention, the AFS Convention and many other

legal instruments adopted by the Parties. Guidelines, however, are not intended to serve as a vehicle for core requirements whose principal purpose is to outline legally binding obligations of the Parties and the regulated community.

3 Clear, unambiguous obligations in regulations provide a level playing field for regulated parties and are designed to deliver specific outcomes that are critical to the purpose and goals of a given IMO legal instrument. Guidelines, while necessary and useful to support IMO legal agreements, do not constitute obligations as all guidelines are by definition guidance. As a general matter, requirements are put in place by the Organization through the formal adoption of regulations or a code. To assist in implementation of binding obligations, guidelines are developed to recommend practices to assist Member States and other interested parties when implementing the relevant regulations. Guidance may be considered, taken into account, or even implemented "in accordance with", but guidelines are fundamentally recommendations that a party may take into account and implement as it deems appropriate.

4 On a number of occasions where the Parties have decided that previous guidance developed by the Organization needs to be mandatory, the guidelines have been explicitly converted to reflect clear obligations and adopted as a mandatory code under the respective regulations. Some of the more well-known examples include the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (NO_x Technical Code) which forms an integral part of the MARPOL Annex VI regulations, the International Code for Ships Operating in Polar Waters (Polar Code), the International Maritime Dangerous Goods Code (IMDG Code), and the International Safety Management Code (ISM Code) among others. Moreover, several codes adopted by IMO are divided into two parts, clearly distinguishing between the mandatory sections and the recommendatory sections. The Polar Code and the International Ship and Port Security Code (ISPS Code) are examples of this practice.

Why guidelines are necessary

5 Guidelines serve a critical purpose and provide detailed recommendations on how a given regulation may be implemented that may otherwise be impractical or inappropriate for formal regulations which are designed to be concise, unambiguous and enforceable. In this context, IMO guidelines provide a critical source of detailed information and procedures for parties to consider as they create and implement domestic programmes and rules to promote uniform implementation of the obligations specified in the regulations formally adopted under MARPOL or other formal legal instruments developed and agreed within the Organization.

6 Guidelines may also be amended in a fairly short time frame and are useful for advising Members and other parties on how they may implement requirements in the face of changing real world conditions without the need to amend the underlying obligation. This is valuable as guidelines may need to be updated to reflect new information and recommendations that build on recent experience, technology development and scientific research.

Why guidelines have a different legal status than regulations

7 While a given Party or group of Parties may elect to make certain guidance or selected elements of a given set of guidelines mandatory within in its own territory through domestic rules, guidelines cannot be assumed to be binding upon a given Party absent agreement and adoption through the specific procedures articulated in a given legal instrument.

8 With respect to the difference in legal effect of amendments to IMO instruments and guidelines, the IMO Assembly, in resolution A.911(22)*, has spoken very clearly on the subject. First, in its preambular paragraphs, the resolution recognizes "the need to ensure that where

* Resolution A.911(22) on *Uniform wording for referencing IMO instruments.*

reference is made to IMO and other instruments, a uniform wording is used in order to indicate clearly the legal status of the instrument concerned and to set the procedures for amendments thereto as appropriate, after the IMO body concerned has decided on such a status". Thus, amendments to IMO instruments and guidelines to assist in implementing those instruments use different wording to distinguish them. Further, the *Organization and method of work of the Maritime Safety Committee and the Marine Environment Protection Committee and their subsidiary bodies*, MSC-MEPC.1/Circ.5/Rev.5 (adopted in July 2023), explicitly states that bodies of the Organization should be guided by Assembly resolution A.911(22). With respect to amendments to binding instruments, the Assembly resolution is quite clear that amendments must "prescribe expressly in the text of the relevant convention regulations that such requirements shall be treated as mandatory".

9 With respect to guidelines, Assembly resolution A.911(22), in its section titled "IMO instruments to be treated as recommendations", states that (emphasis added in bold):

> ".1 clear expressions should be used in the regulation indicating the recommendatory status of the instrument, e.g. "shall be approved by the Administration, **taking into account the recommendations developed by the Organization**" or "[…], based on the guidelines developed by the Organization"; and
>
> .2 self-contradictory expressions, such as "shall comply with the recommendations", should be avoided".

10 Thus, the language some delegations use/propose to imply that guidelines are mandatory is the same language that the Assembly recommended be used to ensure that guidelines would not be treated as mandatory.

11 The Committee should also bear in mind that guidelines are managed by the relevant Committee under its normal processes, so Member States that are not Parties to the underlying mandatory instrument influence decisions where the thresholds for adoption are much lower than the legal instrument the guidelines are intended to complement.

Conclusions

12 In summary, regulations are to be employed to articulate clear and concise requirements that are legally binding in nature. Guidelines are developed to serve as recommendations whose primary purpose is to promote consistent implementation and to provide details that often require extensive text that may be impractical for a concise regulatory document. As noted earlier in paragraph 4, in those cases where the Parties to the relevant instrument (e.g. MARPOL Annex VI) deem that highly detailed procedures and other technical elements need to be binding obligations, the Parties may then adopt the detailed procedures and technical specifications as a binding code.

13 Recognizing that the IMO GHG mid-term measures agreed by the Committee will establish a new chapter to MARPOL Annex VI with significant environmental and commercial consequences, it is important that core substantive issues be addressed in regulations. Requirements are, by definition, legally binding and must be contained in amendments to MARPOL, properly adopted and accepted in accordance with Article 16 of the Convention.

Action requested of the Committee

14 The Committee is invited to note the above information and take action as appropriate.